

ORDER SHEET

Case No. W.P. No. 3472/2016

Versus

S.No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary
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03.12.2019

Mr. Muhammad Tufail Alvi, Advocate for
petitioner.
Sahibzada Aurangzeb, Advocate for
respondents.
Mr. Azhar Saleem Kamalana, A.A.G.

The petitioner has impugned order dated 26.03.2015, whereby District Collector appointed respondent No.4 as Lumberdar. Appeal filed by the petitioner was dismissed on 08.07.2015, whereafter petitioner filed a revision petition, which too was dismissed vide order dated 01.01.2016, all of which orders are subjected to a challenge, through this constitutional petition.

2. The petitioner primarily questions appointment of respondent No.4 as Lumberdar on the premise that marks awarded to the respondent No.4 were contrary to the record and appointment made was in violation of mandate of Rule 17 of West Pakistan Land Revenue Rules, 1968 (Rules, 1968). It is contended that strength and the

importance of 'Arain Community' was overlooked and undermined by the authorities while appointing respondent No.4 as Lumberdar. He submits that 15 marks awarded to the respondent No.4 in terms of Rule 17(e) of Rules, 1968 are contrary to the facts, ground realities and without appreciating critical fact that 'Sheikh Community' is in minority in the village in question. Further contends that petitioner is entitled to 10 marks with respect to cultivation, which if awarded would make the petitioner eligible to be appointed as Lamberdar. Learned counsel has referred to judgments reported as "Muhammad Yousaf Vs. Member, Board of Revenue, and others" (1996 SCMR 1581), "Israr-ul-Haq Vs. Member Board of Revenue, Punjab, Lahore and others" (2016 SCMR 2090), "Muhammad Shareef, Sakina Bibi Vs. Member Board of Revenue, Punjab, Lahore, etc" (NLR 2005 Revenue 165) and "Muhammad Maalik Vs. Member Board of Revenue, Punjab, Lahore and 3 others" (2006 CLC 755). Learned counsel has referred to section 18 (2)(c) to emphasis that respondent No.4, who is a lawyer, would be unable to

discharge his responsibility, hence appointment was void under the principle of 'absentee appointment'.

3. I have examined the available record and perused the orders regarding the appointment of the respondent No.4. It is not disputed that petitioner was awarded 30 marks on the strength and importance of his community and respondent No.4 got 15 marks. 30 Marks were awarded to respondent No.4 on hereditary claim, in terms of Rule 17(a) of Rules, 1968, which is not disputed. Respondent No.4 is practicing lawyer. The academic qualification of the petitioner was dubious, fact evident from the order of District Collector, observing that petitioner when asked admitted that he had not cleared matriculation examination. I am unable to reconcile that how 10 marks were awarded to petitioner in view of this fact. I have examined the judgments referred by learned counsel for the petitioner, which may constitute authorities with reference to the facts and circumstances involved therein, however, same are distinguishable and do not apply to the facts and circumstances of this case.

4. The authorities below have had minutely considered the credentials, qualifications and status of contesting candidates and proceeded in accordance with the criterion provided under the Rules, 1968. The petitioner secured 63 marks and respondent No.4 got 73 marks. The strength and importance of the community was duly considered and appreciated in this case, hence case of **Izhar-ul-Haq (supra)** is not applicable. Likewise, order passed by Member (Judicial-VII) was reasoned, wherein objections raised by the petitioner was accordingly addressed. The principle enunciated in the case of **Muhammad Yousaf (supra)** is not applicable to the facts of the case, as the record available showed that question of absentee appointment as Lamberdar does not arise in this case. The facts in the case of **Muhammad Yousaf (supra)** are different, therefore, ratio therein is not attracted.

5. I do not find any illegality in the orders impugned. In the absence of any illegality, judicial review jurisdiction is not attracted especially when question simply relates to assessment of candidates, tabulation and

award of marks and opinions expressed by the Collector, consistently upheld by the Commissioner, Sahiwal Division and Member (Judicial-VII), Board of Revenue, which authorities, on account of experience, expertise and skills, are better placed to make such appointments. Reference is placed on case reported as "Ghulam Hussain Vs. Ghulam Muhammad and another" (1976 SCMR 75).

6. In view of above, this petition is devoid of any merit, same is, therefore, **dismissed**.

(Asim Hafeez)
Judge

Approved for reporting

M. Nadeem/*